

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
FRANKIE SANTANA,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, P.O. JIMMY PEREZ, and
OFFICERS JOHN AND JAMES DOE, names
presently unknowable by Plaintiff and meant to
designate additional offending officers,

The basis of venue is:
CPLR 504 (3)

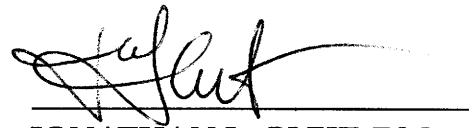
Defendants.
-----X

To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

September 19, 2017



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Jimmy Perez, Shield 8269 of the PSA 7 Precinct
737 Melrose Ave., Bronx NY 10451

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
FRANKIE SANTANA,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, P.O. JIMMY PEREZ, and OFFICER[S]
JOHN AND JAMES DOE, names presently unknowable by
Plaintiff and meant to designate additional offending
officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF FRANKIE SANTANA

1. At the time of the commencement of this action, plaintiff FRANKIE SANTANA was a resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and State of New York.
3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.
5. That on and about December 20, 2016 P.O. JIMMY PEREZ was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.
6. That on and about December 20, 2016 at approximately 5:00 P.M., P.O. JIMMY PEREZ was working and acting within the scope of his employment as a Police Officer, and under the color of law.
7. That on and about December 20, 2016 OFFICER[S] JOHN AND/OR JAMES DOE, whose names are presently unknowable to Plaintiff but necessarily known to Defendants by virtue of their involvement with the subject incident, were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.
8. That on and about December 20, 2016 at approximately 5:00 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.
9. That on or about December 20, 2016 at approximately 5:00 P.M., at 400 East 174th Street Bronx, New York, the plaintiff FRANKIE SANTANA was improperly stopped, detained, questioned, searched, arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to stop, detain, question, search, arrest or confine FRANKIE SANTANA.

10. That at the above time and place Plaintiff was lawfully present, after visiting his cousin, a resident of the aforesaid premises.
11. That the defendants, their agents, servants and/or employees stopped, questioned and searched the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
12. That after Plaintiff informed the defendant P.O. JIMMY PEREZ of his lawful purpose in being at the premises, the defendant P.O. JIMMY PEREZ stated, in sum and substance, that he would determine if Plaintiff was an invited visitor to the premises, which Plaintiff later determined he did not, in fact, do.
13. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.
14. That the defendants, their agents, servants and/or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.
15. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without

any basis in law or fact, and Plaintiff being aware of his unlawful confinement, was thereby caused freight, shock, emotional distress and physical consequences.

16. That the defendants P.O. JIMMY PEREZ, and /or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecution would succeed.

17. That after Plaintiff was arrested he was transported to the PSA 7 Precinct and thereafter transported to Bronx County Central Booking, where he was subjected to unsanitary and vile conditions, including the presence of bedbugs.

18. That defendants, their agents, servants and /or employees continued to prosecute Plaintiff and threaten to deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

19. That all criminal charges brought against Plaintiff, which were brought under docket number 2016BX055146 in the Criminal Court of the City of New York, County of Bronx, regarding the incidents of December 20, 2016 were dismissed by Hon. Bianka Perez, a Judge of the Court, on February 15, 2107.

20. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution of FRANKIE SANTANA.

21. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately fifty seven days.

22. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of 'stopping and frisking' citizens and targeting male minority individuals under the auspices of trespassing in New York City Housing Authority [NYCHA] Buildings while repeatedly failing to attempt to verify that the arrested individuals had a lawful reason to be present at the premises, and thereafter arresting these lawfully present minority males, without any probable cause or reasonable basis to do so, for nefarious, unlawful reasons, including to satisfy arrest quotas and subjugate and oppress that community without regard to whether the individuals so stopped were themselves engaging in any unlawful actions, and without probable or reasonable cause.

23. Thereafter officers of Bronx Police Precincts routinely engage in the use of practices such as illegal, unlawful and unnecessary stops, questions and searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority and repeatedly providing false information and testimony, and without reprimand to the offending officers.
24. That said illegal and unlawful 'stop, question and frisk' and unlawful trespass arrests and arrests of innocent persons without reasonable or probable cause and conducting searches and in public and while in custody when there is no reasonable basis to conduct a search, are a matter of institutionalized policy and record and openly acknowledged or known by the defendants, and therefore condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and is further evidenced by the large amount of prosecutorial 'Decline to Prosecute' and/or dismissals of criminal charges after the resident of the buildings in question verify in court the lawful presence of the wrongly arrested persons.

25. Further, said wrongful arrests are a direct result of the institutionalized practice, policy and procedure of promoting arrest quotas, also euphemistically known as productivity goals.

26. Said policy, practice and procedure of having arrest quotas and/or productivity goals which results in the false arrests of innocent persons is exhibited, for instance, in the November 1, 2011 conviction of New York Police Department Det. Jason Arbeeney, whereat Justice Gustin Reichbach commented on the evidence presented by several witnesses that officers were expected to make certain arrest goals.

27. Additionally in the case of Floyd, et al. v. City of New York, et al., In the Southern District of New York Case 08 Civ.1034, New York City Police Officer Adhyl Polanco testified in open court and under oath that the NEW YORK CITY POLICE DEPARTMENT routinely arrest primarily minority men without a legal reason to do so, and are required or expected to do so, to satisfy arrest quotas and the court determined that said 'stop, question and frisk' policy was being administered in violation of the United States Constitution and in violation of the Fourth Amendment thereof.

28. That said illegal and unlawful 'stop, question and frisk' arrests and arrests of innocent persons without reasonable or probable cause are a matter of public policy and record and openly acknowledged or known by the defendants and was confirmed as

wrongful in the determinations and decisions of Southern District Judge Shira

Scheindlin in Ligon v. City of NY, 12 Civ.2274(SAS) wherein it was ruled that stops and arrests, such as the claimant has alleged herein, based solely on the presence in such a building, are unlawful in that probable causes for the arrests are lacking.

29. Furthermore the same court identified the defendants unlawful, unconstitutional practice and procedure in Davis v NYCHA [90 Civ. 628 (S.D.N.Y.)]. The settlement terms of the Davis v NYCHA action, in April of 2015, explicitly revised the NYPD Patrol Guide on vertical patrols in NYC public housing and the related NYPD training materials regarding vertical patrols and enforcement of NYCHA rules, requiring documentation of all trespass arrests in NYC public housing, and placing these types of arrests under the Floyd v. City of NY Court Monitoring program, in an effort at restricting the unlawful practice that Plaintiff herein specifically complains of.

30. Furthermore, the same wrongful police, practice and procedure was identified by the CITY OF NEW YORK at certain New York City Housing Authority buildings, and is evidenced, for example at http://www.nyc.gov/html/ccrb/downloads/pdf/Police_Retraining_10_27_2010.pdf even prior to the Davis v NYCHA settlement.

31. In addition to the Plaintiffs in Davis v NYCHA, and its class of wronged individuals, Plaintiff is aware of the following individuals subjected to the same

unlawful practice: Isaiah Stewart on March 28, 2013 at 920 Prospect Avenue, Bronx, New York; Tyreik Gantt on August 8, 2013 at 762 Story Avenue, Bronx, NY; William DeJesus on January 3, 2014 at 555 Grand Concourse, Bronx, New York; Davonte Dollard on February 28, 2014 at 301 East 156th Street, Bronx, New York; and hundreds of other similarly wronged individuals necessarily known to Defendants.

32. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

33. The herein above described actions and omissions, engaged in under the color of law by the defendants and their supervisors and commanders, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the Plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

34. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

35. That as a result of the foregoing, the Plaintiff FRANKIE SANTANA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF FRANKIE SANTANA

36. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 35 as though more fully set forth herein.

37. That on February 24, 2017, Plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be presented upon the defendant CITY OF NEW YORK, by presenting a copy thereof, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable.

38. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant

39. The defendant CITY OF NEW YORK conducted, and Plaintiff did appear and give testimony at a General Municipal Law §50h hearing on April 24, 2017.

40. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

41. That on or about December 20, 2016 at approximately 5:00 P.M., at 400 East 174th Street Bronx, New York, the Plaintiff FRANKIE SANTANA was improperly stopped detained, questioned, searched, arrested, and confined without warrant, privilege, proper authority or justification, having no reason in law or in fact to stop, question, search, detain, arrest or confine FRANKIE SANTANA.

42. That at all times herein mentioned, Defendants, their agents, servants and / or employees, deprived the Plaintiff of Due Process under Law.

43. That the defendants, their agents, servants and/or employees arrested and confined the Plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

44. That the defendants, their agents, servants and/or employees arrested the Plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

45. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the Plaintiff and took his property without any basis in law or fact, and Plaintiff being aware of his unlawful confinement, thereby causing freight, shock, distress and physical consequences.

46. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

47. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

48. That as a result of the foregoing, the Plaintiff FRANKIE SANTANA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF FRANKIE SANTANA

49. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 48 as though more fully set forth herein.

50. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the Plaintiff without any basis in law or fact.

JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against Plaintiff thereby causing him to suffer an unjust prosecution initiated with actual malice and without probable cause.

53. That defendants, their agents, servants and/or employees continued to prosecute Plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

54. That all criminal charges brought against Plaintiff, which were brought under docket number 2016BX055146 in the Criminal Court of the City of New York, County of Bronx, regarding the incidents of December 20, 2016 were dismissed by Hon. Bianka Perez, a Judge of the Court, on February 15, 2107.

55. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

56. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured.

57. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately fifty seven days.

58. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

59. That as a result of the foregoing, the Plaintiff FRANKIE SANTANA was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF FRANKIE SANTANA

60. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 59 as though more fully set forth herein.

61. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

62. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and /

or servants and negligently retained its employees, agents, and / or servants in the proper investigation of the lawful purposes of persons present in New York City Housing Authority buildings, and the arrest of individuals, and in the utilization of invasive search procedures utilized without reasonable articulable suspicion of the secreting of evidence underneath clothing or within a bodily cavity.

63. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff FRANKIE SANTANA was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the Plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the Plaintiff and for the purchase of drugs and medicines, and that Plaintiff was and in the future will be prevented from attending to Plaintiff's usual vocation and avocations; all to the Plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

64. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First ,
Second, Third and Fourth Causes of Action, inclusive of punitive damages, and
attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all
lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
September 19, 2017



By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
FRANKIE SANTANA

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:

CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept.
New York, New York 10007

P.O. Jimmy Perez, Shield 8269 of the PSA 7 Precinct
737 Melrose Ave., Bronx NY 10451

PLAINTIFF'S VERIFICATION

FRANKIE SANTANA affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.

Frankie Santana
FRANKIE SANTANA